

25TRCV04341 25TRCV04341

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV04341 Hearing Date: July 9, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – July 9, 2026

Calendar No.

PROCEEDINGS

Cardinol

Transportation, Inc. v. City of Redondo Beach, et al.

25TRCV04341

Cardinol Transportation, Inc.'s Motion to Set Aside Dismissal

TENTATIVE RULING

Cardinol Transportation, Inc.'s Motion
to Set Aside Dismissal is granted.

Background

Plaintiff filed the Complaint on December 26, 2025. Plaintiff
alleges that two buses were wrongfully detained by Defendants. On December 29,

2025, the action was dismissed after Plaintiff failed to appear for the ex parte hearing and after the Court's review of the action revealed that the Complaint was filed by a corporation in pro per.

Motion to Set Aside Dismissal

CCP § 473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

Plaintiff moves for an order granting relief from the entry of dismissal. The motion is brought pursuant to CCP § 473 et seq. on the grounds that the dismissal was entered due to the excusable mistake, inadvertence, surprise, and/or neglect of Plaintiff. Plaintiff has set forth facts to support a showing that the dismissal was entered due to the mistake, inadvertence, surprise, and/or excusable neglect of Plaintiff. Plaintiff's officer states that time was the essence in filing the Complaint due to the potential that Plaintiff's vehicles would not be recoverable. Plaintiff's officer also states that he was unaware of the necessity to be retained by counsel prior to filing the Complaint. Plaintiff has subsequently retained counsel. (Decl., Brandon Mosley, ¶¶ 3-5). The Court determines that the failure to retain counsel prior to filing the Complaint, under these facts, constitutes excusable neglect.

Therefore, the motion is granted pursuant to the discretionary provision of CCP § 473(b). The dismissal is hereby set aside. The case was restored to the active calendar.

Plaintiff is ordered to give notice of this ruling.